

Vidya Devi v. State of U.P.

Allahabad High Court · Division Bench · 29 March 2019 · Writ-C No. 10010 of 2019 · **Writ disposed of; petitioner relegated to Clause 6.5; coercive action stayed 60 days.**

HEADNOTE

A writ challenging the correctness of an electricity bill-cum-disconnection notice is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory remedy. The consumer may apply to the appropriate authority under Clause 6.5 within 30 days; that authority is to decide by a speaking order after hearing, within 30 days of receipt of a certified copy. Coercive action stayed for 60 days.

FACTUAL SUMMARY

Vidya Devi filed a writ in the Allahabad High Court seeking certiorari to quash an Electricity Bill-cum-Disconnection Notice dated 6 December 2018 issued from the office of respondent no. 2, and mandamus directing the authorities to reassess that notice and issue a fresh arrears bill. She disputed the correctness of the bill raised against her. Counsel for the petitioner and the Electricity Department were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill correctness — statutory remedy

HOLDING

Where the consumer disputes the correctness of an electricity bill, the writ court will not entertain the petition because Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy. The petitioner may approach the appropriate authority under Clause 6.5 within 30 days; that authority shall consider and decide the application in accordance with law by a speaking order after opportunity of hearing, within 30 days of receipt of a certified copy of the order. No coercive action for 60 days. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging the correctness of an electricity bill-cum-disconnection notice is not entertained where Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory remedy.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL-CUM-DISCONNECTION NOTICE DATED 06.12.2018 AND WHETHER REASSESSMENT OR A FRESH ARREARS BILL WAS DUE

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